

Opinion of the Court

must afford rights to participation or appeal. That is so because *Bivens* “is concerned solely with deterring the unconstitutional acts of individual officers”—*i. e.*, the focus is whether the Government has put in place safeguards to “prevent[t]” constitutional violations “from recurring.” *Malesko*, 534 U. S., at 71, 74; see also *Meyer*, 510 U. S., at 485. And, again, the question whether a given remedy is adequate is a legislative determination that must be left to Congress, not the federal courts. So long as Congress or the Executive has created a remedial process that it finds sufficient to secure an adequate level of deterrence, the courts cannot second-guess that calibration by superimposing a *Bivens* remedy. That is true even if a court independently concludes that the Government’s procedures are “not as effective as an individual damages remedy.” *Bush*, 462 U. S., at 372. Thus here, as in *Hernández*, we have no warrant to doubt that the consideration of Boule’s grievance against Agent Egbert secured adequate deterrence and afforded Boule an alternative remedy. See 589 U. S., at ____.

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We also conclude that there is no *Bivens* cause of action for Boule’s First Amendment retaliation claim. While we have assumed that such a damages action might be available, see, *e. g.*, *Hartman v. Moore*, 547 U. S. 250, 252 (2006), “[w]e have never held that *Bivens* extends to First Amendment claims,” *Reichle v. Howards*, 566 U. S. 658, 663, n. 4 (2012). Because a new context arises when there is a new “constitutional right at issue,” *Ziglar*, 582 U. S., at 140, the Court of Appeals correctly held that Boule’s First Amendment claim presents a new *Bivens* context. See 998 F. 3d, at 390. Now presented with the question whether to extend *Bivens* to

880, 884 (CA6 2021). And, in any event, Agent Egbert has consistently claimed that alternative remedies foreclose applying *Bivens* in this case. Thus, under our precedents, he is “not limited to the precise arguments [he] made below.” *Yee v. Escondido*, 503 U. S. 519, 534 (1992).